

Chapter 50 Commercial Residential Employment

50.5 Regulations Applying to the Commercial Residential Employment Zone Category

50.5.1 General

50.5.1.10 Interpretation

(1) Application of General Regulations Section

The regulations in Section 50.5 apply to all lands, uses, **buildings** and **structures** in the Commercial Residential Employment Zone category.

(2) Interpretation of the Commercial Residential Employment Zone Symbol

The zone symbol on the Zoning By-law Map for zones in the Commercial Residential Employment Zone category consists of the letters CRE, indicating the primary land use permitted in the respective zone.

(3) Interpretation of the Zone Label

In the Commercial Residential Employment Zone category, the letters following the zone symbol in the zone label have the following meaning:

(A) a numerical value indicating the permitted maximum floor space index for all land uses on a **lot** and may be followed by one or more of the following in brackets:

- (i) the letter "c" and a numerical value indicates the permitted maximum floor space index for non-residential uses on a **lot**;
- (ii) the letter "r" and a numerical value indicates the permitted maximum floor space index for residential uses on a **lot**; and
- (iii) the letter "e" and a numerical value indicates the permitted maximum floor space index for employment uses on a **lot**. [By-law: 1092-2021]

50.5.1.20 Restrictions

(1) Use Restrictions on Commercial Residential Employment Lots without Street Frontage

If a **lot** in the Commercial Residential Employment Zone category does not front on a **street** and has its only **vehicle** access from a **lane** or private right-of-way that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category, the **lot** may only be used for required **parking spaces**.

(2) Living Accommodation in Ancillary Buildings

In the Commercial Residential Employment Zone category, **ancillary buildings** may not be used for living accommodation.

50.5.20 Permitted Uses

50.5.20.1 General

(1) Firearm Manufacturing

The making of a firearm or any part of a firearm is not a permitted **manufacturing use** in the Commercial Residential Employment Zone category.

(2) Firearms Manufacturing Interpretation

A gunsmith or **custom workshop** that makes a firearm is a **manufacturing use** and must comply with regulation 50.5.20.1(1).

(3) Firearm Manufacturing for the Entertainment Industry

Despite regulation 50.5.20.1(1) and (2), the making of a firearm or any part of a firearm for use in a motion picture or television show is not a **manufacturing use**.

50.5.40 Principal Building Requirements

50.5.40.1 General

(1) Building Requirements

Additional **building** requirements are in each zone in the Commercial Residential Employment Zone category.

50.5.40.10 Height

(1) Determining the Height of Buildings in Commercial Residential Employment Zones

In the Commercial Residential Employment Zone category, the height of a **building** is the distance between the average elevation of the ground along the **front lot line**, or in the case of a **corner lot**, the average elevation of the ground along all **lot lines** that abut a **street** and the elevation of the highest point of the **building**.

(2) Determining the Height of Structures in Commercial Residential Employment Zones

In the Commercial Residential Employment Zone category the height of a **structure** that is not a **building** is the distance between **average grade** and the elevation of the highest point of that **structure**.

(3) Height of Specific Structures on a Building

In the Commercial Residential Employment Zone category, the following **structures** on the roof of a **building** may exceed the permitted maximum height for that **building** by 5.0 metres:

- (A) antennae;
- (B) flagpoles; and
- (C) satellite dishes.

(4) Height of Elements for Functional Operation of a Building

In the Commercial Residential Employment Zone category, equipment and **structures** on the roof of a **building**, may exceed the permitted maximum height for that **building** by 5.0 metres, subject to regulation 50.5.40.10(5):

- (A) equipment used for the functional operation of the **building**, such as electrical, utility, mechanical and ventilation equipment;
- (B) **structures** or parts of the **building** that are used for the functional operation of the **building**, such as enclosed stairwells, roof access, maintenance equipment storage, elevator shafts, chimneys, vents, and water supply facilities; and
- (C) **structures** that enclose, screen or cover the equipment, **structures** and parts of a **building** listed in (A) and (B) above.

(5) Height - Horizontal Limits on Elements for Functional Operation of a Building

In the Commercial Residential Employment Zone category, equipment, **structures** or parts of a **building** that exceed the maximum height for a **building**, as permitted by regulation 50.5.40.10(4), must comply with the following:

- (A) the total area of all equipment, **structures**, or parts of a **building** may cover no more than 30% of the area of the roof, measured horizontally; and
- (B) if any equipment, **structures**, or parts of a **building** are located within 6.0 metres of a **lot line** abutting a **street**, their total horizontal dimension, measured parallel to the **street**, may not exceed 20% of the width of the **building's main walls** facing that **street**.

(6) Height of Rooftop Amenity Space Safety and Wind Protection Elements

In the Commercial Residential Employment Zone category, unenclosed **structures** providing safety or wind protection to rooftop **amenity space** may exceed the permitted maximum height for that **building** by 3.0 metres, if the **structures** are no closer than 2.0 metres from the interior face of any **main wall**.

(7) Height of Buildings and Structures - Green Roof

In the Commercial Residential Employment Zone category, a parapet wall for a **green roof** may exceed the permitted maximum height for a **building** by 2.0 metres.

(8) Limits on Elements for Functional Operation of a Building for Towers

In the Commercial Residential Employment Zone category:

- (A) Despite regulations 50.5.40.10 (4) and (5), equipment, **structures** or parts of a **building** listed in regulation 50.5.40.10 (4) located on the roof of the tower portion of a **building** may exceed the permitted maximum height for that **building** by 6.5 metres, if the total area of all equipment, **structures**, or parts on the roof of the tower portion of the **building** cover no more than 450 square metres, measured horizontally;
- (B) chimneys, pipes, and vents, may further exceed the permitted maximum height in (A) by 3.0 metres; and
- (C) For the purpose of regulation 50.5.40.10(8), a "tower" is the portions of a **building** which collectively enclose the entirety of a **storey** higher than 24.0 metres above the **average grade**, and where the maximum average **gross floor area** of any **storey** located above 24.0 metres does not exceed 750 square metres. [By-law: LPAT PL130592 March 6, 2020]

50.5.40.40 Floor Area

(1) Gross Floor Area Calculations for a Non-residential Building in a Commercial Residential Employment Zone Category

In the Commercial Residential Employment Zone category the **gross floor area** of a **non-residential building** is reduced by the area in the **building** used for:

- (A) parking, loading and bicycle parking below-ground;
- (B) required **loading spaces** at the ground level and required **bicycle parking spaces** at or above-ground;
- (C) storage rooms, washrooms, electrical, utility, mechanical and ventilation rooms in the **basement**;
- (D) shower and change facilities and **bicycle maintenance facilities** required by this By-law for required **bicycle parking spaces**; [By-law: 839-2022]
- (E) elevator shafts;
- (F) mechanical penthouse; and
- (G) exit stairwells in the **building**.

(2) Floor Space Index Calculation for a Non-residential Building in a Commercial Residential Employment Zone Category

In the Commercial Residential Employment Zone category the floor space index for a **non-residential building** is the result of the **gross floor area** minus the areas listed in regulation 50.5.40.40(1) divided by the area of the **lot**.

(3) Gross Floor Area Calculations for a Mixed Use Building in a Commercial Residential Employment Zone Category

In the Commercial Residential Employment Zone category the **gross floor area** of a **mixed use building** is reduced by the area in the **building** used for:

- (A) parking, loading and bicycle parking below-ground;
- (B) required **loading spaces** on the ground level and required **bicycle parking spaces** at or above-ground;
- (C) storage rooms, washrooms, electrical, utility, mechanical and ventilation rooms in the **basement**;
- (D) shower and change facilities and **bicycle maintenance facilities** required by this By-law for required **bicycle parking spaces**; [By-law: 839-2022]
- (E) **amenity space** required by this By-law;
- (F) elevator shafts;
- (G) garbage shafts;

- (H) mechanical penthouse; and
- (I) exit stairwells in the **building**.

(4) Floor Space Index Calculation for a Mixed Use Building in a Commercial Residential Employment Zone Category

In the Commercial Residential Employment Zone category the floor space index for a **mixed use building** is the result of the **gross floor area** minus the areas listed in regulation 50.5.40.40(3) divided by the area of the **lot**.

(5) Gross Floor Area Calculations for an Apartment Building in a Commercial Residential Employment Zone Category

In the Commercial Residential Employment Zone category the **gross floor area** of an **apartment building** is reduced by the area in the **building** used for:

- (A) parking, loading and bicycle parking below-ground;
- (B) required **loading spaces** at the ground level and required **bicycle parking spaces** at or above-ground;
- (C) storage rooms, washrooms, electrical, utility, mechanical and ventilation rooms in the **basement**;
- (D) shower and change facilities and **bicycle maintenance facilities** required by this By-law for required **bicycle parking spaces**; [By-law: 839-2022]
- (E) **amenity space** required by this By-law;
- (F) elevator shafts;
- (G) garbage shafts;
- (H) mechanical penthouse; and
- (I) exit stairwells in the **building**.

(6) Floor Space Index Calculation for an Apartment Building in a Commercial Residential Employment Zone Category

In the Commercial Residential Employment Zone category the floor space index for an **apartment building** is the result of the **gross floor area** minus the areas listed in regulation 50.5.40.40(5) divided by the area of the **lot**.

(7) Gross Floor Area Calculations Regarding Attic Space in a Detached House, Semi-Detached House, Townhouse, Duplex, Triplex, or Fourplex in a Commercial Residential Employment Zone Category

In the Commercial Residential Employment Zone category, the **gross floor area** of a **detached house, semi-detached house, townhouse, duplex, triplex, or fourplex** includes floor area in an attic above the **main walls** of the **building**, if it:

- (A) is accessed by means of a permanent stair case or mechanical elevating device; or
- (B) has a vertical clearance of more than 1.4 metres between the ceiling joists below and the roof rafters, and at least 80% of the area has a vertical clearance of more than 2.0 metres and an area of at least 10.0 square metres.

(8) Exclusion of Certain Floor Area in an Attic for Detached House, Semi-Detached House, Townhouse, Duplex, Triplex, or Fourplex in a Commercial Residential Employment Zone Category

If the floor area meets the conditions in regulation 10.5.40.40(1), and the area or a portion of the area is used for housing or maintaining mechanical equipment for the **building** and does not exceed 20.0 square metres, the floor area or portion thereof is not included in the **gross floor area** of the **building**.

(9) Gross Floor Area Calculations for a Detached House, Semi-Detached House, Townhouse, Duplex, Triplex, or Fourplex in a Commercial Residential Employment Zone Category

In the Commercial Residential Employment Zone category, the **gross floor area** of a **detached house, semi-detached house, townhouse, duplex, triplex, or fourplex** may be reduced by:

- (A) the floor area of the **basement**, unless the **established grade** is higher than the average elevation of the ground along the rear **main wall** of the **residential building** by 2.5 metres or more, in which case the **gross floor area** of the **building** may be reduced by 50% of the floor area of the **basement**;
- (B) the area of a void in a floor if there is a vertical clearance of more than 4.5 metres between the top of the floor below the void and the ceiling directly above it, to a maximum of 10% of the permitted maximum **gross floor area** for the **building**;

- (C) the area for a maximum of one **parking space** per **dwelling unit** in the **building**. [By-law: 89-2022]
- (D) in addition to (C) above, the area used for one additional **parking space** in a **detached house** on a **lot** with a **lot frontage** of more than 12.0 metres.

(10) Floor Space Index Calculation for a Detached House, Semi-Detached House, Townhouse, Duplex, Triplex, or Fourplex Building in a Commercial Residential Employment Zone Category

In the Commercial Residential Employment Zone category, the floor space index for a **detached house, semi-detached house, townhouse, duplex, triplex, or fourplex** is the result of the **gross floor area**, plus the area of an attic described in regulation 50.5.40.40(7) and subject to regulation 50.5.40.40(8) minus the areas listed in regulation 50.5.40.40(9), divided by the area of the **lot**.

50.5.40.41 Floor Area Exemptions

(1) Permitted Floor Space Index for Lawfully Existing Buildings

In the Commercial Residential Employment Zone category, if the **lawful gross floor area** of **lawfully existing buildings or structures** on a **lot** results in a floor space index greater than the permitted maximum floor space index, the **lawful** floor space index resulting from those **lawfully existing buildings or structures** on that **lot** is the maximum floor space index for those **lawfully existing buildings or structures** on that **lot**.

50.5.40.60 Permitted Encroachments

(1) Canopies and Awnings

In the Commercial Residential Employment Zone category, a canopy, awning or similar **structure**, with or without structural support, may encroach into a required minimum **building setback** that abuts a **street**, if no part of the canopy, awning or similar **structure** is located more than 5.0 metres above the elevation of the ground directly below it.

50.5.40.70 Setbacks

(1) Building or Structure to be Set Back from a Lane

A **building** or **structure** in the Commercial Residential Employment Zone category may be:

- (A) no closer than 3.0 metres from the original centreline of a **lane** if the **lot** abutting the other side of the **lane** is not in the Residential Zone category, Residential Apartment Zone category or Open Space Zone category; and
- (B) no closer than 3.5 metres from the original centreline of a **lane** if the **lot** abutting the other side of the **lane** is in the Residential Zone category, Residential Apartment Zone category or Open Space Zone category.

50.5.40.71 Setbacks Exemptions

(1) Permitted Setbacks for Lawfully Existing Building from a Lane

In the Commercial Residential Employment Zone category, if the **lawful** distance of a **lawfully existing building or structure** from the original centreline of a **lane** is less than the required minimum distance from the original centreline of the **lane**, that **lawful** distance is the minimum distance from the original centreline of the **lane** for that **lawfully existing building or structure**.

(2) Additions Above Lawfully Existing Buildings in Relation to a Lane

The required minimum distance from the original centreline of a **lane** for any addition or extension above a **lawfully existing building or structure** referred to in regulation 50.5.40.71(1) is the minimum distance from the original centreline of the **lane** permitted by regulation 50.5.40.71(1).

50.5.75 Energy Regulations

50.5.75.1 General

(1) Renewable Energy and Cogeneration Energy Device - Location Restriction

In the Commercial Residential Employment Zone category, a device producing **renewable energy** or **cogeneration energy** on a **lot** may not be in a **front yard** or **side yard** that abuts a **street**.

(2) Renewable Energy Device - Height Requirements

In the Commercial Residential Employment Zone category, a photovoltaic **solar energy** device or a thermal **solar energy** device that is:

(A) on a **building**:

- (i) must comply with the required minimum **building setbacks** for a **building** on the **lot**; and
- (ii) no part of the device may be higher than 2.0 metres above the permitted maximum height for the **building**; and

(B) ground mounted, must comply with the requirements for a **building** or **structure** on the **lot**.

(3) Wind Energy Device - Building Setbacks

In the Commercial Residential Employment Zone category, a **wind energy** device must comply with the required minimum **building setbacks** for a **building** on the **lot**.

(4) Wind Energy Device - Height

In the Commercial Residential Employment Zone category, no part of a **wind energy** device may exceed the permitted maximum height for a **building** as follows:

- (A) on a **lot** that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category, by 3.0 metres;
- (B) if the permitted maximum height of a **building** is less than 25.0 metres, by 3.0 metres; and
- (C) in all other cases, by 5.0 metres.

(5) Geo-energy Requirements

In the Commercial Residential Employment Zone category, any above-ground part of a **geo-energy** device must comply with the requirements for a **building** or **structure** on the **lot**.

(6) Cogeneration Device

In the Commercial Residential Employment Zone category, a **cogeneration energy** device must be located inside a permitted **building**.

50.5.80 Parking

50.5.80.1 General

(1) Use of Required Parking Space

A **parking space** required by this By-law for a use in the Commercial Residential Employment Zone category must be available for the use for which it is required.

50.5.80.10 Location

(1) Location of Required Parking Spaces

A **parking space** must be on the same **lot** as the use for which the **parking space** is required.

50.10 Commercial Residential Employment Zone (CRE)

50.10.1 General

50.10.1.10 Interpretation

(1) Application of This Section

The regulations in Section 50.10 apply to lands, uses, **buildings** and **structures** in the CRE zone.

(2) Medical Office

In the CRE zone, a medical office includes a medical clinic.

50.10.20 Permitted Uses

50.10.20.10 Permitted Use

(1) Use - CRE Zone

- (A) In the CRE zone, the following uses are permitted under the letter "c" in the zone label referred to in regulation 50.5.1.10(3)(A)(i):

Ambulance Depot
Art Gallery
Artist Studio
Automated Banking Machine
Community Centre
Courts of Law
Custom Workshop
Education Use
Financial Institution
Fire Hall
Hospital
Library
Massage Therapy
Medical Office
Museum
Office
Park
Passenger Terminal
Performing Arts Studio
Personal Service Shop
Pet Services
Police Station
Post-Secondary School
Production Studio
Religious Education Use
Respite Care Facility
Retail Service
Service Shop
Software Development and Processing
Veterinary Hospital
Wellness Centre [By-law: 1198-2019]

- (B) In the CRE zone, the following uses are permitted under the letter "r" in the zone label referred to in regulation 50.5.1.10(3)(A)(ii):

Dwelling Unit in a permitted **building** type in Clause 50.10.20.40

Hospice Care Home
Municipal Shelter
Nursing Home
Religious Residence
Residential Care Home
Retirement Home
Student Residence [By-law: 545-2019]

- (C) In the CRE zone, the following uses are permitted under the letter "e" in the zone label referred to in regulation 50.5.1.10(3)(A)(iii):

Beverage **Manufacturing Use**
Bindery
Carpenter's Shop
Cold Storage
Computer, Communications, Electronics, or Optical Media **Manufacturing Use**
Dry Cleaning or Laundry Plant
Furniture **Manufacturing Use**
Industrial Sales and Service Use
Medical Equipment and Supplies **Manufacturing Use**
Metal Products **Manufacturing Use**
Printing Establishment
Self-storage Warehouse
Warehouse
Wholesaling Use

50.10.20.20 Permitted Use - with Conditions

(1) Use with Conditions - CRE Zone

- (A) In the CRE zone, the following uses are permitted under the "c" in the zone label referred to in regulation 50.5.1.10(3)(A)(i) if they comply with the specific conditions associated with the reference number(s) for each use in Clause 50.10.20.100:

Amusement Arcade (1,31)
Animal Shelter (9)
Cabaret (2)
Club (2)
Day Nursery (26)
Eating Establishment (2,32)
Entertainment Place of Assembly (2,39)
Funeral Home (4)
Hotel (5)
Laboratory (10)
Nightclub (2,3)
Outdoor Patio (21)
Outdoor Sales or Display (41)
Place of Assembly (2,28)
Place of Worship (34)
Private School (27)
Public School (27)
Public Utility (7,44)
Public Works Yard (8)
Recreation Use (2,39)
Retail Store (6)
Sports Place of Assembly (39)
Take-out Eating Establishment (2)
Transportation Use (43)
Vehicle Dealership (22)
Vehicle Fuel Station (23)

Vehicle Service Shop (24)

Vehicle Washing Establishment (25) [By-law: 1198-2019]

- (B) In the CRE zone, the following uses are permitted under the letter "r" in the zone label referred to in regulation 50.5.1.10(3)(A)(ii) if they comply with the specific conditions associated with the reference number(s) for each use in Clause 50.10.20.100:

Crisis Care Shelter (36)

Group Home (29)

Multi-tenant House (40)

Private Home Daycare (38)

Secondary Suite (37)

Seniors Community House (35)

Short-term Rental (33)

Tourist Home (20)

[By-law: 1453-2017]

[By-law: 545-2019] [By-law: 156-2023]

- (C) In the CRE zone, the following uses are permitted under the letter "e" in the zone label referred to in regulation 50.5.1.10(3)(A)(iii) if they comply with the specific conditions associated with the reference number(s) for each use in Clause 50.10.20.100:

Apparel and Textile **Manufacturing Use (12)**

Clay Product **Manufacturing Use (16, 19)**

Cogeneration Energy (42)

Contractor's Establishment (11)

Food **Manufacturing Use (13)**

Glass Product **Manufacturing Use (15)**

Pharmaceutical and Medicine **Manufacturing Use (16, 17)**

Plastic Product **Manufacturing Use (16,18)**

Renewable Energy (42)

Wood Product **Manufacturing Use (14)**

50.10.20.40 Permitted Building Types

(1) Permitted Building Types for Dwelling Units

In the CRE zone the following **building types** for **dwelling units** are permitted:

Detached House;

Semi-Detached House;

Townhouse;

Duplex;

Triplex;

Fourplex;

Apartment Building; and

Mixed Use Building.

50.10.20.100 Conditions

(1) Amusement Arcade

In the CRE zone, an **amusement arcade** may not be located:

(A) in a **building** that has a **hotel** with less than 100 guest rooms; or

(B) on a **lot** if any part of the **lot** is less than:

(i) 150 metres from any other **lot** with an **amusement arcade**; and

(ii) 300 metres from any **lot** with a **public school** or **private school**.

(2) Cabaret, Club, Eating Establishment, Entertainment Place of Assembly, Nightclub, Place of Assembly, Recreation Use and Take-out Eating Establishment

In the CRE zone:

- (A) the total **interior floor area** of all **cabarets, clubs, eating establishments, entertainment places of assembly, nightclubs, places of assembly, recreation uses** and **take-out eating establishments** on a **lot** within 6.1 metres of a **lot** in the Residential Zone category or Residential Apartment Zone category may not exceed 400 square metres;
- (B) the calculation of total **interior floor area** is reduced by:
 - (i) the **interior floor area** used for items listed in regulations 50.5.40.40(1) (A) to (G) and 50.5.40.40(3) (A) to (I); and
 - (ii) in the case of an **eating establishment** or **take-out eating establishment**, the areas used for associated offices, storage rooms, and staff rooms located in the **basement** or on a different **storey** than the **eating establishment** or **take-out eating establishment**; and
- (C) the **interior floor area** size restriction in regulation (A) above does not apply to **cabarets, clubs, eating establishments, entertainment places of assembly, places of assembly, recreation uses** and **take-out eating establishments**, if the **lot** is more than 6.1 metres from a **lot** in the Residential Zone category or Residential Apartment Zone category.

(3) Nightclub

In the CRE zone, a **nightclub** is subject to the following:

- (A) it must be located on the first **storey**;
- (B) it must be on a **lot** that does not abut a **lot** in the Residential Zone category or Residential Apartment Zone category;
- (B) it must be on a **lot** that does not abut a **lot** in the Residential Zone category or Residential Apartment Zone category; [By-law: 1774-2019]
- (C) it must be the only **nightclub** in the **building**;
- (D) the **front lot line** or **side lot line** of the **lot** may not abut Spadina Ave.; and
- (E) if the **lot** is west of Spadina Ave.:
 - (i) the **lot** must have existed on February 14, 2006;
 - (ii) the maximum **interior floor area** of a **nightclub** may not exceed 350 square metres;
 - (iii) the **nightclub** must be on a **lot** that abuts King Street West, or Richmond Street West, or Adelaide Street West; and
 - (iv) the total number of **nightclubs** in the CRE zone west of Spadina Ave. may not be more than 14.

(4) Funeral Home

In the CRE zone, a **funeral home** must comply with the specific use regulations in Section 150.120.

(5) Hotel Location in a Building with Dwelling Units

In the CRE zone, no **hotel** room or suite may be located on the same **storey** as a **dwelling unit**.

(6) Retail Store with Beverage Manufacturing Use for Beer, Cider or Wine Production

In the CRE zone, a **retail store** may include beverage **manufacturing use** for beer, cider or wine, if the **interior floor area** of the **retail store**, including the beverage **manufacturing use**, does not exceed 400.0 square metres. [By-law: 1198-2019]

(7) Public Utility

In the CRE zone, a **public utility** may not be:

- (A) a sewage treatment plant;
- (B) a water filtration plant.

(8) Public Works Yard

In the CRE zone, a **public works yard** must be in a wholly enclosed **building** and there may be no **open storage**.

(9) Animal Shelter

In the CRE zone, an **animal shelter** must be the only use in the **building**.

(10) Laboratory

In the CRE zone, a **laboratory** may not be in a **building** with a **dwelling unit**.

(11) Contractor's Establishment

In the CRE zone, a contractor's establishment is subject to the following:

- (A) heavy equipment and machinery such as cranes, ploughs, tractors, pile drivers, road making, wrecker's or steel erector's equipment, and **building** and construction material may not be stored on the **lot**; and
- (B) there may be no **open storage** of loose materials such as sand, gravel or concrete.

(12) Apparel and Textile Manufacturing Use

In the CRE zone, an apparel and textile **manufacturing use** may not involve leather products or chemical dyeing of cloth.

(13) Food Manufacturing Use

In the CRE zone, a food **manufacturing use** must be fruit and vegetable preserving, speciality food manufacturing and dairy product manufacturing, only in batch processing.

(14) Wood Product Manufacturing Use

In the CRE zone, a wood product **manufacturing use** may not be a:

- (A) saw mill;
- (B) planing mill; or
- (C) wood distillation plant.

(15) Glass Product Manufacturing Use

In the CRE zone, only purchased glass may be used in a glass product **manufacturing use**.

(16) Certain Manufacturing Uses Not Located in a Building with a Dwelling Unit

In the CRE zone, a pharmaceutical, medicine, plastic, or clay **manufacturing use** may not be located in a **building** that has a **dwelling unit**.

(17) Pharmaceutical and Medicine Manufacturing Use

In the CRE zone, a pharmaceutical and medicine **manufacturing use** is subject to the following:

- (A) the use may only include assembly or manufacture of previously processed materials; and
- (B) the use may not include the processing or combining of materials that alter the structure of the material.

(18) Plastic Product Manufacturing

In the CRE zone, a plastic product **manufacturing use**:

- (A) may be for the assembly or manufacture of previously processed materials;
- (B) must not process or combine materials that alter the structure of the material; and
- (C) must not include the manufacture of celluloid or pyroxylin.

(19) Clay Product Manufacturing

In the CRE zone, a clay product **manufacturing use**:

- (A) must be for the manufacturing of pottery, ceramics and plumbing fixtures; and
- (B) may not be for the manufacturing of blocks, bricks, beams, pipes, artificial abrasives, clay pit mining or other mined materials.

(20) Tourist Home

In the CRE zone, a **tourist home**:

- (A) must be in a **townhouse**, **detached house**, or a **semi-detached house**; and
- (B) may not have **vehicle** access by a mutual **driveway**.

(21) Outdoor Patio

In the CRE zone:

- (A) an **outdoor patio** must be combined with one of the following uses and be located on the same **lot** or abutting **lot** that permits an **outdoor patio**:
- (i) **Amusement Arcade**;
 - (ii) **Cabaret**;
 - (iii) **Club**;
 - (iv) **Eating Establishment**;
 - (v) **Entertainment Place of Assembly**;
 - (vi) **Nightclub**;
 - (vii) **Place of Assembly**;
 - (viii) **Recreation Use**;
 - (ix) **Retail Store**;
 - (x) **Sports Place of Assembly**; and
 - (xi) **Take-out Eating Establishment**. [By-law: 1153-2023]
- (B) the permitted maximum area of an **outdoor patio** is the greater of:
- (i) 50.0 square metres; or
 - (ii) 50 percent of the **interior floor area** of the **premises** it is combined with. [By-law: 1153-2023]
- (C) an **outdoor patio** may be used to provide entertainment such as performances, music and dancing, provided the **outdoor patio** is not located above the first **storey** of the **building** and the entertainment area does not exceed the greater of 10 percent of the **outdoor patio** area or 5.0 square metres; and [By-law: 1153-2023]
- (D) an **outdoor patio** must be set back at least 10.0 metres from a **lot** in the Residential Zone category or Residential Apartment Zone category. [By-law: 1153-2023]
- (E) despite regulation (D) above, an **outdoor patio** located above the first **storey** of the **building**, must be at least 40.0 metres:
- (i) measured horizontally, from a **lot** in the Residential Zone category or Residential Apartment Zone category. [By-law: 1676-2013]
- (F) an **outdoor patio** in the **rear yard** of a **lot** which abuts a **lot** in the Residential Zone category or Residential Apartment Zone category must have a fence installed along the portion of the **outdoor patio** parallel to the **rear lot line**; and
- (G) if a **lawfully existing outdoor patio** is closer to a **lot** than required in (D) or (E) above, that **lawful** distance from a **lot** in the Residential Zone category or Residential Apartment Zone category is the minimum distance for that **lawfully existing outdoor patio** from that **lot**.
- (22) Vehicle Dealership
In the CRE zone, a **vehicle dealership** must comply with the specific use regulations in Section 150.90.
- (23) Vehicle Fuel Station
In the CRE zone, a **vehicle fuel station** must comply with the specific use regulations in Section 150.92.
- (24) Vehicle Service Shop
In the CRE zone, a **vehicle service shop** must comply with the specific use regulations in Section 150.94.
- (25) Vehicle Washing Establishment
In the CRE zone, a **vehicle washing establishment** must comply with the specific use regulations in Section 150.96.
- (26) Day Nursery
In the CRE zone, a **day nursery** must comply with the specific use regulations in Section 150.45.
- (27) Public School, Private School
In the CRE zone, a **public school** and a **private school** must comply with the specific use regulations in Section 150.48.
- (28) Place of Assembly- Banquet Hall

In the CRE zone, a **place of assembly** that is a banquet hall with an **interior floor area** greater than 1,000 square metres must be at least 300.0 metres from a **lot** in the Residential Zone category or Residential Apartment Zone category. This regulation does not apply if the banquet hall is combined with a **hotel**.

(29) Group Home

In the CRE zone, a **group home** must comply with the specific use regulations in Section 150.15.

(31) Amusement Arcade

In the CRE zone, an **amusement arcade**:

- (A) may be in a **building** that has no residential uses permitted in Clause 50.10.20.10 or 50.10.20.20;
- (B) must have no more than 36 **amusement devices**;
- (C) must have a minimum **interior floor area** of 6.0 square metres for each **amusement device**; and
- (D) may only be accessible from the interior of the **building**.

(32) Eating Establishment

In the CRE zone, an **eating establishment** must comply with the specific use regulations in Section 150.100.

(33) Short-term Rental

A **short-term rental** in the CRE zone must comply with the specific use regulations in Section 150.13. [By-law: 1453-2017]

(34) Place of Worship

In the CRE zone, a **place of worship** must comply with the specific use regulations in Section 150.50.

(35) Seniors Community House

In the CRE zone, a **seniors community house** must comply with the specific use regulations in Section 150.30.

(36) Crisis Care Shelter

In the CRE zone, a **crisis care shelter** must comply with the specific use regulations in Section 150.20.

(37) Secondary Suite

In the CRE zone, a **secondary suite** must comply with the specific use regulations in Section 150.10.

(38) Private Home Daycare

In the CRE zone, a **private home daycare**:

- (A) may be located in a **townhouse**, **detached house**, or a **semi-detached house**; and
- (B) a children's play area for a **private home daycare**:
 - (i) must be fenced; and
 - (ii) may not be located in the **front yard** or a **side yard** abutting a **street**.

(39) Entertainment Place of Assembly, Sports Place of Assembly and Recreation Use- Amusement Device

In the CRE zone, an **entertainment place of assembly**, a **sports place of assembly** or **recreation use** may not have more than 12 **amusement devices** and these devices may not be located in a hallway, lobby or other pedestrian area if the **amusement devices** are in the same **building** as any one of these uses.

(40) Multi-tenant House

A **multi-tenant house** in the CRE zone must comply with the specific use regulations in Section 150.25. [By-law: 156-2023]

(41) Outdoor Sales or Displays

In the CRE zone, the outdoor sale or display of goods or commodities is subject to the following:

- (A) it must be combined with another permitted non-residential use;
- (B) goods or commodities may be displayed no closer than 15.0 metres of a **lot line** that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category;
- (C) the cumulative area used for the outdoor sale or display of goods or commodities may be no more than 250 square metres;
- (D) the area used for the outdoor sale or display of goods or commodities may not be located in areas required by this By-law for parking, loading, **driveways** or **landscaping**; and

(E) there may be no storage or warehousing of goods in a **vehicle**.

(42) Renewable Energy Production or Cogeneration Energy Production

In the CRE zone, **renewable energy** production or **cogeneration energy** production must be in combination with another permitted use on the **lot** and comply with all Municipal, Provincial and Federal by-laws, statutes and regulations.

(43) Transportation Use

A **building** or **structure** on a **lot** in the CRE zone and used as a **transportation use** must comply with all requirements for a **building** on that **lot**.

(44) Public Utility

In the CRE zone, a **public utility** must be enclosed by walls and comply with the permitted maximum **lot coverage**, required minimum **building setback** and permitted maximum height for a **building** in the CRE zone if it is:

(A) a hydro electrical transformer station; or [By-law: OMB PL130592 February 7, 2017]

(B) a natural gas regulator station.

50.10.40 Principal Building Requirements

50.10.40.1 General

(1) King-Spadina Area - First Floor Elevation Requirement

If a **building** is located on a **lot** in the CRE zone bounded by Queen Street West to the north, Simcoe Street to the east, Front Street West to the south, and Bathurst Street to the west, the elevation of the first **storey** of the **building** must be:

(A) at or within 0.6 metres above the height of the public sidewalk abutting the site; or

(B) from the elevation of the **street** abutting the site if there is no sidewalk.

(2) Residential Use Orientation to Street

In the CRE zone, a **building** with a **dwelling unit** may not be located so that another **building** is between any **main wall** of the **building** and the **street** on which the **building** fronts.

(3) Hotel Orientation To Street

In the CRE zone, no **building** may be used as a **hotel** if another **building** is located between it and the **street** on which the **hotel** fronts.

(4) Building Orientation to a Street - Hotels and Buildings With Dwelling Units

In the CRE zone, a **building**, or an addition which is not attached above-ground to the original part of a **building**, is not permitted if:

(A) it has **dwelling units**, rooms or suites in a **hotel**, and is in the rear of another **building** or the original part of the same **building**; or

(B) it is in front of a **building**, or the original part of the same **building**, has **dwelling units**, rooms or suites in a **hotel**, to produce the condition of a **building** having **dwelling units**, rooms or suites, in the rear of another **building**.

50.10.40.10 Height

(1) Maximum Height

In the CRE zone, the permitted maximum height of a **building** or **structure** on a **lot** is:

(A) the numerical value, in metres, following the letters "HT" on the Height Overlay Map; and

(B) if no numerical value follows the letters "HT" on the Height Overlay Map, the permitted maximum height is not limited by this regulation.

(2) Heritage Building Volume Permission Beyond Height Limit

In the CRE zone, a **building** on a **heritage site** may be permitted to exceed the permitted maximum height, subject to the following:

- (A) the **lot** must be subject to an agreement pursuant to section 37 of the Planning Act, authorizing the increase in height in exchange for the conservation of all or part of a **building** identified as a **heritage site**;
- (B) the additional height of the **building** may not be greater than 20% of the permitted maximum height of the **building**;
- (C) the part of a **building** exceeding the permitted maximum height may have a maximum total volume that does not exceed the values calculated as follows:
 - (i) if the façade of the heritage **building** facing a **street** is conserved, the **building** volume above the permitted maximum height of the **building** is 6.0 times the area (length multiplied by height) of the portion of the façade that is conserved;
 - (ii) if there is no construction above the heritage **building**, the **building** volume above the permitted maximum height of the **building** is equal to 1.5 times the volume of the retained part of the heritage **building** that is further than 3.0 metres from the façade of the heritage **building** facing a **street**;
 - (iii) if there is construction above a conserved portion of the heritage **building**, the **building** volume above the permitted maximum height of the **building** is equal to one times the volume of that conserved portion of the heritage **building** further than 3.0 metres from the façade of the heritage **building** facing a **street**; and
 - (iv) if there is an above-ground separation between the conserved heritage **building** and the adjacent **buildings** or **structures** on the same **lot**, the **building** volume above the permitted maximum height of the **building** is equal to the volume determined by multiplying the height of the conserved heritage **building** by:
 - (a) the distance between the conserved heritage **building** and the adjacent **building** or **structure** measured at right angles from the conserved heritage **building**; and
 - (b) the length of the portion of the conserved heritage **building**, if a line projected at a right angle from the heritage **building** face intercepts the adjacent **building** or **structure** on the same **lot**; and
- (D) any permitted **building** volume exceeding the permitted maximum height of the **building** is subject to the following:
 - (i) it must comply with **angular plane** requirements, if the zone label refers to a CRE Site Specific Exception with the Prevailing Section 12(2) 260 of the former Zoning By-law of the City of Toronto By-law, By-law 438-86; or
 - (ii) if there are no **angular plane** requirements, the **building** may be no closer to a **lot line** than the original **building setback** for all portions of the **main walls** of the highest **storey** facing the same **lot line** and located below the permitted maximum height, plus 3.0 metres; and
- (E) the dimensions of a conserved heritage **building** in regulations (C) (ii), (iii), and (iv) above are measured between the exterior faces of the **main walls** and between the interior surface of the ceiling of the uppermost **storey** and the surface of the first **storey** of the conserved heritage **building**; and
- (F) equipment, **structures** and parts of a **building** referred to in regulations 50.5.40.10(3), 50.5.40.10(4), 50.5.40.10(5), and 50.5.40.10(6) are measured from the adjusted maximum height of a **building** permitted by regulations (A) to (E) above.

(3) Height Exemption - Mechanical Elements in King-Spadina Area

In the CRE zone, a **building** located in the area bounded by Queen Street West to the north, Simcoe Street to the east, Front Street West to the south, and Bathurst Street to the west, may exceed the permitted maximum height of the **building** by 5.0 metres if:

- (A) all stair towers, elevator shafts, and mechanical equipment are enclosed; and
- (B) the additional 5.0 metre height does not penetrate the required **angular plane** for the **lot**.

(4) Maximum Number of Storeys

The permitted maximum number of **storeys** in a **building** on a **lot** in the CRE zone is:

- (A) the numerical value following the letters "ST" on the Height Overlay Map; and

- (B) if the **lot** is in an area with no numerical value following the letters "ST" on the Height Overlay Map, the number of **storeys** is not limited by this regulation. [By-law: 1353-2015]

50.10.40.11 Height Exemptions

(1) Permitted Maximum Height for Lawfully Existing Buildings

In the CRE zone, if the **lawful** height of a **lawfully existing building** or **structure** is greater than the permitted maximum height of a **building**, that **lawful** height is the maximum height for that **lawfully existing building** or **structure**.

(2) Additions to Lawfully Existing Buildings - Maximum Height

Any addition or extension to a **lawfully existing building** or **structure** referred to in regulation 50.10.40.11(1) must comply with the permitted maximum height or be authorized by a Section 45 Planning Act minor variance.

50.10.40.30 Building Depth

(1) Maximum Building Depth

In the CRE zone, no portion of a **building** may be set back more than 50.0 metres from a **lot line** that abuts a **street**.

50.10.40.31 Building Depth Exemptions

(1) Permitted Building Depth for Lawfully Existing Buildings

In the CRE zone, if the **lawful building depth** of a **lawfully existing building** is greater than the permitted maximum **building depth**, that **lawful building depth** is the maximum **building depth** for that **lawfully existing building**.

(2) Additions to Lawfully Existing Buildings

Any addition or extension to a **lawfully existing building** referred to in regulation 50.10.40.31(1) must comply with all other regulations in this By-law or be authorized by a Section 45 Planning Act minor variance.

50.10.40.50 Decks, Platforms and Amenities

(1) Amenity Space Requirement for Buildings with 20 or More Dwelling Units

In the CRE zone, a **building** with 20 or more **dwelling units** must provide **amenity space** at a minimum rate of 4.0 square metres for each **dwelling unit**, of which:

- (A) at least 2.0 square metres for each **dwelling unit** is indoor **amenity space**; [By-law: 1353-2015]
- (B) at least 40.0 square metres is outdoor **amenity space** in a location adjoining or directly accessible to the indoor **amenity space**; and
- (C) no more than 25% of the outdoor component may be a **green roof**.

50.10.40.51 Decks, Platforms and Amenities Exemptions

(1) Required Amenity Space for Lawfully Existing Buildings with 20 or More Dwelling Units

In the CRE zone, if a **lawfully existing building** with 20 or more **dwelling units** has not provided the **amenity space** required by regulation 50.10.40.50(1), the **lawfully existing building** does not have to comply with regulation 50.10.40.50(1).

50.10.40.60 Permitted Encroachments

(1) Permitted Encroachments - Decks, Porches and Balconies

In the CRE zone a platform with no **main walls**, such as a deck, porch, balcony or similar **structure**, attached to or less than 0.3 metres from a **building**, is subject to the following:

- (A) a platform with a floor no higher than the first **storey** of the **building** may encroach into the required minimum **building setback** the lesser of 2.5 metres or 50% of the required minimum **building setback** if it is no closer to a **lot line** than 0.3 metres; and
- (B) a platform with a floor that is higher than the first **storey** of the **building** may encroach into the required minimum **building setback** 1.5 metres.

(2) Permitted Encroachments - Canopies and Awnings

In the CRE zone a canopy, awning or similar **structure**, with or without structural support, or a roof over a platform which complies with regulation 50.10.40.60(1), may encroach into a required minimum **building setback** for the **building**:

- (A) to the same extent as the platform it is covering; and
- (B) when it does not cover a platform, the canopy, awning or similar **structure** may encroach into a required minimum **building setback** as follows:
 - (i) in a **rear yard**, the lesser of 2.5 metres or 50% of the required **rear yard setback**, if it is no closer to a **side lot line** than the required **side yard setback**;
 - (ii) in a **side yard** that does not abut a **street**, a maximum of 1.5 metres, if it is at least 0.3 metres from the **side lot lines**; and
 - (iii) in a **front yard** or **side yard** that abuts a **street**, in compliance with Regulation 50.5.40.60(1).

(3) Permitted Encroachments - Exterior Stairs, Access Ramp and Elevating Device

In the CRE zone:

- (A) exterior stairs providing access to a **building** or **structure** may encroach into a required minimum **building setback**, if the stairs are:
 - (i) no longer than 1.5 horizontal units for each 1.0 vertical unit above-ground at the point where the stairs meet the **building** or **structure**;
 - (ii) no wider than 2.0 metres; and
 - (iii) no closer to a **lot line** than 0.3 metres; and
- (B) an uncovered ramp providing pedestrian access to a **building** or **structure** may encroach into a required minimum **building setback**, if the ramp is:
 - (i) no longer than 15 horizontal units for each 1.0 vertical unit above-ground at the point where the ramp meets the **building** or **structure**;
 - (ii) no wider than 1.5 metres for each sloped ramp segment; and
 - (iii) no closer to a **lot line** than 0.3 metres; and
- (C) an elevating device providing access to a **building** or **structure** may encroach into a required minimum **building setback**, if the elevating device:
 - (i) elevates no higher than the first **storey** of the **building**;
 - (ii) has a maximum area of 3.0 square metres; and
 - (iii) is no closer to a **lot line** than 0.3 metres.

(4) Permitted Encroachments - Exterior Main Wall Surface

In the CRE zone cladding added to the original exterior surface of the **main wall** of a **building**, may encroach into a required minimum **building setback** a maximum of 0.15 metres, if the **building** is at least 5 years old.

(5) Permitted Encroachments - Architectural Features

In the CRE zone architectural features on a **building** must comply with the following:

- (A) a pilaster, decorative column, cornice, sill, belt course or other similar architectural feature on a **building** may encroach into a required minimum **building setback** a maximum of 1.0 metres, if it is no closer to a **lot line** than 0.3 metres; and

(B) a chimney breast, on a **building**, may encroach into a required minimum **building setback** a maximum of 0.6 metres, if it is:

- (i) no wider than 2.0 metres; and
- (ii) no closer to a **lot line** than 0.3 metres.

(6) Permitted Encroachments - Window Projections

In the CRE zone, a bay window, box window, or other window projection from a **main wall** of a **building**, which increases floor area or enclosed space and does not touch the ground, may encroach:

- (A) into a required minimum **front yard setback** or required minimum **rear yard setback** a maximum of 0.75 metres, if the window projections in total do not occupy more than 65% of the width of the **front wall** or rear **main wall** at each **storey**; and
- (B) into a required minimum **side yard setback** a maximum of 0.6 metres, if the window projections:
 - (i) in total do not occupy more than 30% of the width of the side **main wall** at each **storey**; and
 - (ii) are no closer to the **side lot line** than 0.6 metres.

(7) Permitted Encroachments - Equipment

In the CRE zone, the following wall mounted equipment may encroach into a required minimum **building setback** as follows, if they are no closer to the **lot line** than 0.3 metres:

- (A) an air conditioner a maximum of 0.9 metres into the **rear yard setback** or **side yard setback**, if it is not located above the first **storey**;
- (B) a satellite dish, a maximum of 0.9 metres;
- (C) an antennae or pole used to hold an antennae, a maximum of 0.9 metres into the **rear yard setback** or **side yard setback**; and
- (D) a vent or pipe, a maximum of 0.6 metres into a **rear yard setback** or **side yard setback**.

(8) Permitted Encroachments for Particular Building Setbacks

In the CRE zone, the permitted encroachments in regulations 50.10.40.60(1), 50.10.40.60(2), 50.10.40.60(5), and 50.10.40.60(6) may encroach into the following required minimum **building setbacks**:

- (A) a **side yard setback** and **rear yard setback** as set out in regulation 50.10.40.70(1);
- (B) a required minimum **building setback** from a **lot** in the Residential Zone category or Residential Apartment Zone category set out in regulation 50.10.40.70(2); and
- (C) a separation distance between exterior **main walls** of **buildings** as set out in regulation 50.10.40.80(1).

50.10.40.70 Setbacks

(1) Side Yard Setback and Rear Yard Setback

In the CRE zone, the required minimum **building setback** from a **side lot line** or **rear lot line** is 7.5 metres, excluding any part of the **building** or **structure** that is less than 25.0 metres from a **lot line** abutting a **street** or **park**.

(2) Building Setback from a Lot in the Residential Zone Category or Residential Apartment Zone Category

In the CRE zone, any part of a **building** or **structure** with height greater than 4.0 metres, must be set back at least 3.0 metres from any **lot line** that abuts a **lot** entirely within the Residential Zone category or Residential Apartment Zone category.

(3) Building Setback from a Lane

In the CRE zone if a **lot** abuts a **lane**, the required minimum **building setback** from a **side lot line** or **rear lot line** that abuts the **lane** is 7.5 metres measured from the original centreline of the **lane**, excluding any part of the **building** or **structure** that is less than 25.0 metres from a **lot line** abutting a **street** or **park**.

(4) Heritage building - Setback of new construction above a heritage building

In the CRE zone, if a **lot** with a **building** is identified as a **heritage site**, any portion of a **building** that exceeds the height of the conserved heritage **building**, whether an addition above the conserved heritage **building** or as a separate **building** on the same **lot**, must be set back from a **lot line** that abuts a **street** a

distance equal to the original **building setback** of the conserved heritage **building** from that **lot line** that abuts a **street**, plus 3.0 metres.

(5) Building Setback for Upper Building Level Facing A Street

In the CRE zone, the required minimum **building setback** from a **lot line** that abuts a **street** is:

- (A) 3.0 metres for the portion of the **building** or **structure** which exceeds a height of 20.0 metres; or
- (B) 3.0 metres for the portion of the **building** or **structure** which exceeds a height of 16.0 metres for a **lot** that fronts King Street East.

(6) Building Setbacks Below Ground

(DELETED BY OMB ORDER, JULY 12, 2017 – PL130592) [By-law: OMB PL130592]

50.10.40.71 Setbacks Exemptions

(1) Permitted Setbacks for Lawfully Existing Buildings

In the CRE zone, if the **lawful building setback** of a **lawfully existing building** or **structure** is less than the required minimum **building setback** from:

- (A) a **rear lot line**, that **lawful building setback** is the minimum **rear yard setback** for that **lawfully existing building** or **structure**; or
- (B) a **side lot line**, that **lawful building setback** is the minimum **side yard setback** for that **lawfully existing building** or **structure**.

(2) Required Setbacks for Additions to Lawfully Existing Buildings

Any addition or extension to a **lawfully existing building** or **structure** referred to in regulation 50.10.40.71(1) must comply with the required minimum **building setbacks** or be authorized by a Section 45 Planning Act minor variance.

50.10.40.80 Separation

(1) Distance Between External Walls of Buildings

In the CRE zone, if a **building** has **main walls** facing each other or facing the **main walls** of another **building** on the same **lot** and a line projected at a right angle from one of the **main walls** intercepts the other **main wall**, the required minimum above-ground distance between them is 11.0 metres.

(2) Distance Between Windows of Buildings in King-Spadina

In the CRE zone bounded by Queen Street West to the north, Simcoe Street to the east, Front Street West to the south, and Bathurst Street to the west, if a **building** has windows facing each other, and a line projected at a right angle from one of the windows intercepts the other window, the required minimum above-ground distance between the windows is 15.0 metres.

(3) Distance Between Windows of Buildings in King-Spadina

In the CRE zone bounded by Queen Street West to the north, Simcoe Street to the east, Front Street West to the south, and Bathurst Street to the west, if a **building** has windows, the required minimum above-ground distance between the windows and another **main wall** without windows or a **lot line** that does not abut a **street** or **park** is 7.5 metres.

50.10.40.81 Separation Exemptions

(1) Permitted Separation Between Main Walls for Lawfully Existing Buildings

In the CRE zone, if the **lawful** separation distance between the **main walls** of **lawfully existing buildings** on the same **lot**, or between **main walls** of the same **lawfully existing building**, is less than the required minimum separation distance between **main walls**, that **lawful** separation distance is the minimum separation distance for those **main walls** of those **lawfully existing buildings**.

(2) Additions to Lawfully Existing Buildings

Any addition or extension to a **lawfully existing building or structure** referred to in regulation 50.10.40.81(1) must comply with the minimum separation distance between **main walls** required by this By-law or be authorized by a Section 45 Planning Act minor variance.

50.10.50 Yards

50.10.50.10 Landscaping

(1) Landscaping Requirement if Abutting a Lot in the Residential Zone Category or Residential Apartment Zone Category

If a **lot** in the CRE zone abuts a **lot** in the Residential Zone category or Residential Apartment Zone category, a minimum 1.5 metre wide strip of **soft landscaping** must be provided along the part of the **lot line** abutting the **lot** in the Residential Zone category or Residential Apartment Zone category.

(2) Fence Requirement If Abutting a Lot in the Residential Zone Category or Residential Apartment Zone Category

If a **lot** in the CRE zone abuts a **lot** in the Residential Zone category or the Residential Apartment Zone category, a fence must be installed along the portion of a **lot line** abutting the **lot** in the Residential Zone category or Residential Apartment Zone category.

50.10.80 Parking

50.10.80.1 General

(1) Outdoor Parking Restriction

In the CRE zone, an outdoor parking area with more than 3 **parking spaces** must be fenced if it is located in a **side yard** or **rear yard** that abuts a **street, lane** or a **lot** in the Residential Zone category or Residential Apartment Zone category, excluding the portions used for **vehicle** access.

(2) CRE Zone Above Grade Parking Building or Structure Restriction

In the CRE zone, **parking spaces** in an above-ground **building or structure** is permitted, if:

- (A) it is combined with another permitted use in the **building or structure**; and
- (B) any portion of the **building or structure** facing a **street** and less than 4.0 metres above the elevation of that **lot line** abutting the **street** must have permitted uses other than the parking or storing of **vehicles**, to a minimum depth of 10.0 metres from the **main wall**, along the entire length of the **main wall**, except for **vehicle** access.

(3) CRE Zone Parking Space Allocation Mixed Use Building

In the CRE zone, if a **building** has both residential and non-residential uses and has less than 25 **dwelling units**, a minimum of one-third (1/3) of the total **parking spaces** required for all the uses in the **building** must be available to all occupants or visitors to the **building**, without assigning any of those **parking spaces** for exclusive use.

50.10.80.10 Location

(1) CRE Zone Parking Restriction

In the CRE zone, no **vehicle** may be parked or stored in the **front yard**.

50.10.80.20 Setbacks

(1) Parking Space to be Set Back from a Lot Line

A **parking space** not located in a **building or structure** must be set back at least 0.5 metres from a **lot line**.

50.10.90 Loading

50.10.90.10 Location

(1) Loading Space Location

A **loading space** may not be in:

- (A) a **front yard**;
- (B) a **side yard** abutting a **street**; or
- (C) any **side yard** or **rear yard** that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category.

50.10.90.11 Location Exemptions

(1) Loading Space Location Exemption

If a **lawfully existing building** has a **lawful loading space** that does not comply with the **loading space** location requirements of regulation 50.10.90.10(1), that **lawful loading space** is exempt from the requirements of regulation 50.10.90.10(1).

50.10.90.40 Access to Loading Space

(1) Access to Loading Space - Restrictions

In the CRE zone:

- (A) where a **lot** abuts a **lane**, **vehicle** access to a **loading space** must be from the **lane**; and
- (B) where a **corner lot** does not abut a **lane** and it has at least one **lot line** abutting a **street** that is not a major **street** on the Policy Areas Overlay Map, **vehicle** access to a **loading space** must be from the **street** which is not a major **street**.

(2) Loading Restrictions Adjacent to a Lot in the Residential Zone Category or Residential Apartment Zone Category

In the CRE zone, where a **lot** abuts a **lot** in the Residential Zone category or Residential Apartment Zone category, **vehicle** access to the **loading space** may not be over any part of a **lot** in the Residential Zone category or Residential Apartment Zone category.

(3) Access Through a Main Wall to a Loading Space

(deleted by OMB Order, November 21, 2018 - PL 130592) [By-law: PL130592 Nov21_2018]

50.10.90.41 Access to Loading Space Exemptions

(1) Access Through a Main Wall to a Loading Space Exemption

If a **lawfully existing building** has a **lawful loading space** access in a **main wall** that does not comply with the **loading space** location requirements of regulation 50.10.90.40(3), that **lawful loading space** is exempt from the requirements of regulation 50.10.90.40(3).

50.10.100 Access to Lot

50.10.100.10 Location

(1) Access to Parking Areas if Adjacent to a Lot in a Residential Zone Category or Residential Apartment Zone Category

If a **lot** in the CRE zone abuts a **lot** in the Residential Zone category or Residential Apartment Zone category:

- (A) **vehicle** access to a **parking space** may not be over any part of a **lot** in the Residential Zone category or Residential Apartment Zone category; and
- (B) a **parking space** must be set back at least 1.5 metres from a **lot line** that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category.

50.10.150 Waste

50.10.150.1 General

(1) Waste and Recyclable Materials Storage

In the CRE zone:

- (A) all waste and **recyclable material** must be stored in a wholly enclosed **building**, if a **building** is constructed pursuant to a building permit issued more than three years after May 9, 2013; and
- (B) if the waste and **recyclable material** is stored in an **ancillary building**, the **ancillary building**:
 - (i) may not be located in a **side yard** that abuts a **street** or in a **front yard**; and
 - (ii) must be located at least:
 - (a) 7.5 metres from a **lot** in the Residential Zone category, Residential Apartment Zone category or Open Space Zone category; and
 - (b) 1.0 metres from all other **side lot lines** and **rear lot lines**.